

21STCV00971 21STCV00971

County: los-angeles

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Case Number: 21STCV00971 Hearing Date: September 22, 2026 Dept: 514

Delgado v. Ford Motor Company

21STCV00971

Defendants' Motion to Strike Costs

Tentative Ruling

The motion to strike costs is granted.

This action was filed in 2021. A notice of settlement was filed on April 25, 2024, and the Court dismissed this action (without prejudice) on October 2, 2024.

On March 12, 2025, the Court granted Plaintiff's motion for attorney's fees.

On August 3, 2026, Plaintiff filed a memorandum of costs.

On August 5, 2026, Defendants filed a motion to strike the memorandum of costs as untimely. Plaintiff filed an opposition on September 9, and Defendants filed a reply on September 14.

In general, the "prevailing party" is entitled as a matter of right to recover costs for suit in any action or proceeding. (Code Civ. Proc., § 1032, subd. (b); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606; *Scott Co. Of Calif. v. Blount, Inc.* (1999) 20 Cal.4th 1103,

1108.) Assuming the “prevailing party” requirements are met, the trial court has no discretion to order each party to bear his or her own costs of suit. (Michell v. Olick (1996) 49 Cal.App.4th 1194, 1198; Nelson v. Anderson (1999) 72 Cal.App.4th 111, 129.)

“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.” (California Rules of Court, rule 3.1700, subd. (a).)

This action was dismissed on October 3, 2024. The memorandum of costs filed by Plaintiff in August 2026 is untimely.

On that basis, the Court GRANTS the Defendants’ motion to strike the memorandum of costs.

Moving party is ordered to give notice.